

HOUSE No. 124

The Commonwealth of Massachusetts

PRESENTED BY:

Carmine Lawrence Gentile and Mary S. Keefe

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to improving pesticide protections for Massachusetts schoolchildren.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Carmine Lawrence Gentile</i>	<i>13th Middlesex</i>	<i>1/10/2025</i>
<i>Mary S. Keefe</i>	<i>15th Worcester</i>	<i>1/10/2025</i>
<i>Brian M. Ashe</i>	<i>2nd Hampden</i>	<i>1/22/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>11/6/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/27/2025</i>
<i>Colleen M. Garry</i>	<i>36th Middlesex</i>	<i>1/25/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/11/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>7/31/2025</i>

HOUSE No. 124

By Representatives Gentile of Sudbury and Keefe of Worcester, a petition (accompanied by bill, House, No. 124) of Carmine Lawrence Gentile, Mary S. Keefe and others relative to pesticide products eligible for use on the outdoor grounds of schools, child care centers or school age child care programs. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to improving pesticide protections for Massachusetts schoolchildren.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 6C of Chapter 132B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the word “center”, in lines 3, 6 and 10,
3 each time it appears, the following words:- , property occupied by the department of children and
4 families, facilities of the juvenile court, facilities of the department of youth services, sports
5 fields for town youth teams.

6 SECTION 2. Said Section 6C of said Chapter 132B, as so appearing, is hereby further
7 amended by inserting after the word “program”, in lines 3, 7 and 11, each time it appears, the
8 following words:- or on properties within 150 feet thereof, including abutters.

9 SECTION 3. Said Section 6C of said Chapter 132B, as so appearing, is hereby further
10 amended by inserting after the word “school”, in line 11 and line 27, the following words:- or
11 department.

SECTION 4. Said Section 6C of said Chapter 132B, as so appearing, is hereby further amended by adding the following new subsection:-

(d) This section shall apply regardless of what entity hires a party to spray, release, deposit or apply pesticides. This section shall apply whether a hiring entity is a public or private owner of real property, a management company for real property, or any other person or legal entity.

SECTION 5. Said section 6G of said chapter 132B, as so appearing, is hereby further amended by adding following paragraph:-

Notwithstanding the forgoing, a school, child care center, public institution of higher education or school age child care program shall only use pesticide products that: (i) are classified by the United States Environmental Protection Agency as an exempt material pursuant to 40 C.F.R. 152.25, as amended; or (ii) include no active ingredients other than those published in the National List at 7 C.F.R 205.601, as amended; provided, however, that a school, child care center, public institution of higher education or school age child care program may be granted a hardship waiver, at the discretion of the department, for use of a pesticide that does not meet such qualifications.